

TAB 19



Board of Education Report

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File #: Rep-286-22/23, Version: 1

Request for Authorization to Negotiate and Execute Contracts

June 13, 2023

Division of Special Education

Action Proposed:

Delegate authority to the Superintendent or his/her designee in the Division of Special Education to negotiate, execute, authorize payments under, amend, exercise options, and terminate (whether by default or convenience) and take any other actions necessary, subject to and in accordance with California Education Code, California Government Code and any other applicable statutory provisions, for the administration of master contracts listed in Attachment “A”: Nonpublic School/Agency (“NPS/A”) Master Contracts (exceeding \$250,000) for the 2023-24 school.

Background:

The Division of Special Education negotiates its master contracts with NPS/As on an annual basis and will prepare periodic reports for contract actions necessary for the provision of special education and related services in accordance with Board delegated authority to the Superintendent.

The Individuals with Disabilities Education Act (“IDEA”) requires that the District provide qualified students with disabilities with special education and related services. The District meets these obligations through its Special Education Local Plan Area (“SELPA”) Local Plan. The District is required to maintain a continuum of program options, including nonpublic, nonsectarian schools and nonpublic agencies, to meet the needs of its special education students. (Ed. Code, §§ 56360, 56361, 56365.)

The District is required to make available NPS and NPA services and must provide these services by entering into a master contract for nonpublic, nonsectarian school or agency services. The master contract must specify the financial agreement between the District and NPS/A for the services in a student’s IEP that the NPS/A will provide. (Ed. Code, § 56366(a).) The District negotiates its master contracts with NPS/As on an annual basis. (5 C.C.R. § 3062(a).)

Expected Outcomes:

Approval of this item will allow the Division of Special Education to continue the provision of special education supports and services provided by these contracts to the Los Angeles Unified School District to serve eligible students with disabilities in support of Board policies and goals.

Board Options and Consequences:

A “yes” vote authorizes the Division of Special Education to negotiate and execute master contracts to provide NPS/A services to qualified students with disabilities. A no vote will result in immediate unavailability of these services or discontinuance of services, or both. The unavailability or discontinuance of these services would likely result in costly litigation and increased future costs in securing these services. Postponement of actions presented for approval in Attachment “A” will delay contract award or delivery dates, resulting in costly litigation.

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Policy Implications:

This action does not change District policy.

Budget Impact:

The contract actions presented do not change the budget authority.

Student Impact:

These contracts support the provision of special education and related services required by federal and state special education laws.

Equity Impact:

Component	Score	Score Rationale
Recognition	3	The award of the nonpublic school and agency (NPS/A) master contracts to will support the District's efforts to provide mandated special education and related services and programs for students with disabilities pursuant to their Individualized Education Plan (IEP). The District is required to maintain a continuum of program options, to include nonpublic school and agency services, to meet the needs of individuals with exceptional needs for special education and related services as required by the IDEA.
Resource Prioritization	2	The NPS/A contracts will make services available to qualified students with disabilities, to be provided through master contracts with California Department of Education certified nonpublic schools and agencies.
Results	3	The 2023-2024 NPS/A contracts will ensure that the Division of Special Education has the required continuum of program options available to meet the needs of individuals with exceptional needs for special education and related services as required by the IDEA.
TOTAL	8	

Issues and Analysis:

There are no policy implications on these agreements. The Administrative and Education Legal Services Team, Office of the General Counsel, has reviewed and approved the master contract as to form.

Attachments:

Attachment A - List of NPS/A Master Contracts for the 2023-2024 fiscal year.

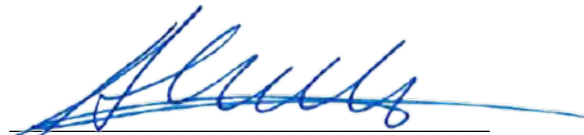
Informatives:

Not Applicable.

Submitted:

05/24/23

RESPECTFULLY SUBMITTED,



ALBERTO M. CARVALHO
Superintendent

APPROVED & PRESENTED BY:



ANTHONY AGUILAR
Chief of Special Education, Equity and
Specialized Programs
Division of Special Education

REVIEWED BY:



DEVORA NAVERA REED
General Counsel

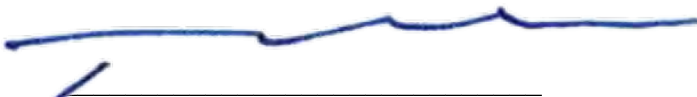
☒ Approved as to form.

APPROVED & PRESENTED BY:



DR. MARIBEL LUNA
Senior Director
Division of Special Education

REVIEWED BY:



TONY ATIENZA
Director, Budget Services and Financial Planning

☒ Approved as to budget impact statement.

ATTACHMENT A

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
360 DEGREE CUSTOMER INC. - LAS PER DIEM (NPA)	1782501-24	Special Education Funds	\$ 244,000,000
ADVANCING HIGHER EDUCATION & DEV (AHEAD) (NPA)	1785701-24	(76.84%) Federal Funds (23.16%)	
ALPINE ACADEMY (NPS)	1911201-24		
AUTISM BEHAVIOR CONSULTANTS (NPA)	1918901-24		
AUTISM BEHAVIOR INTERVENTION (NPA)	1781101-24		
AUTISM LEARNING PARTNERS (NPA)	1924301-24		
AUTISM SPECT INTERV (NPA)	1928701-24		
AUTISM SPECT THRPS (NPA)	1928201-24		
BEHAVIOR & EDUC, INC (NPA)	1928301-24		
BEHAVIOR FRONTIERS (NPA)	1781201-24		
BEHAVIOR GUIDANCE GROUP (NPA)	1788801-24		
BEHAVIORAL LEARNING NETWORK (NPA)	1787201-24 1785601-24		
BMR HEALTH SVCS, INC (NPA)	1177101-24		
BRIDGEPORT SCHOOL (NPS)	1930101-24		
BRIDGEPORT VOC WEST (NPS)	1930201-24		
BRIDGEPORT WEST (NPS)	1788001-24		
CALIFORNIA PSYCHCARE, INC (NPA)	1911601-24		
CAROUSEL SCHOOL (NPS)	1919701-24		
CENTER FOR AUT&REL SVC,INC (NPA)	1785501-24		
CENTER FOR DEV MIND (NPA)	1789601-24		
CHANGE ACADEMY-CALO (NPS)	1920001-24		
CHILD COUNSELING & BEHAVIOR THERAPY CLINIC (NPA)	1920101-24		
CHILD DEVELOPMENT INSTITUTE (NPA)	1911701-24		
CHIME INSTITUTE (PRESCHOOL DIS) (NPA)	1784701-24		
CINNAMON HILLS SCH (NPS)	1928501-24		
CREATIVE BEHV CONSLT (NPA)	1919801-24		
CTR BEH, ED & SOC THER. (NPA)	1920601-24		

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DEVELOPMENTAL DYNAMO INC (NPA)	1929401-24
DEVEREUX ACKERMAN (NPS)	1779301-24
DEVEREUX SCHOOL OF VIERA (NPS)	1961501-24
DUBNOFF SCHOOL (NPS)	1920901-24
EARLY STRIDES (NPA)	1172201-24
EKO MULTI PURPOSE CENTER, INC. (NPS)	1912601-24
ELLIOTT INSTITUTE, INC. (NPS)	1919501-24
ESSEY, CAROL (NPA)	
FIRSTSTEPS FOR KIDS, INC (NPA)	1781401-24
FOCUS ON ALL CHILD THERAPIES (NPA)	1921501-24
GARY STROMBERG & ASSOCIATES -PER DIEM (NPA)	1782901-24
HAWTHORNE ACADEMY (NPS)	1913101-24
HEARTSPRING SCHOOL (NPS)	1789101-24
HELP GROUP-NORTH HILLS PREP (NPS)	1965101-24
HERITAGE SCHOOL (NPS)	1913201-24
INCLUSIVE ED. & COMM PARTNERSHIP (NPA)	1922101-24
INIZIO INTERVNTN INC (NPA)	1788101-24
INSTITUTE FOR APPL. BEH. ANALYSIS (NPA)	1922301-24
INTENSIVE BEH INTRVEN CONSULTANTS (NPA)	1922401-24
INTERCARE THERAPY (NPA)	1922501-24
IRL ALMANSOR (NPS)	1911101-24
IRL WESTMORELAND (NPS)	1785301-24
JACK WEAVER SCHOOL (OAK GROVE) (NPS)	1913601-24
KAYNE ERAS CENTER (NPA)	1923001-24
KAYNE ERAS CENTER (NPS)	1913701-24
LEARNING & BEHV CTR (NPA)	1928101-24
LEHRHOFF, IRWIN (NPA)	1922701-24
LIGHT STREET SPECIAL EDUCATION SOLUTIONS (NPA)	1927901-24
LITTLE CITIZENS/WESTSIDE ACAD#1 MS (NPS)	1914301-24
LITTLE CITIZENS/WESTSIDE ACAD#3 ES (NPS)	1914501-24
LOGAN RIVER ACADEMY (NPS)	1914701-24
LOOKING GLASS CHILDRENS SERVICES (NPA)	1923301-24

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LOVAAS INST./EARLY INTERVENTION (NPA)	1923501-24
MCRORY PEDIATRIC SERVICES (NPA)	1923801-24
NEW MEDISCAN II, LLC (NPA)	1923901-24
NORTHPOINT SCHOOL CFGC (NPS)	1177601-24
NOVA HEALTH THERAPIES (NPA)	1786901-24
PERSONAL COACHING SYSTEMS (NPS)	1788401-24
PIONEER HLTH SVC LLC (NPA)	1785101-24
PRISTINE REHAB CARE (NPA)	1780601-24
PROGRESSUS THERAPY, LLC (NPA)	1924701-24
PROTOCOL AGENCY, INC. (NPA)	1928601-24
PROVO CANYON, UHS (NPS)	1915901-24
RCM HEALTH CARE SVCS (NPA)	1930601-24
REACHING THE STARS CTR. FOR AUT. (NPA)	1924801-24
SHABANI INSTITUTE (NPA)	1787301-24
SIERRA SCHOOL OF ALHAMBRA (NPS)	1108201-24
SLAUSON LEARNING CTR #1 (HIGH) (NPS)	1916301-24
SLAUSON LEARNING CTR II (ELEM) (NPS)	1917401-24
SMART START (NPS)	1916601-24
SOLIANT HEALTH INC (NPA)	1784201-24
SOUTH BAY SPEECH AND LANGUAGE (NPA)	1918601-24
SPEECH TIME (NPA)	1783801-24
SPEECH/LANG/EDUC. ASSOC. (NPA)	1925201-24
STAFF ASSISTANCE (NPA)	1925401-24
STEM3 ACADEMY (NPS)	1787401-24
STEPPING STONES GR (NPA)	1930501-24
SUMMIT VIEW SCHOOL (NPS)	1169501-24
SUMMIT VIEW SCHOOL (WESTSIDE) (NPS)	1916801-24
SUNRISE SCHOOL (NPS)	1163101-24
SUNRISE WEST (NPS)	1930301-24
SWITZER LEARNING CENTER (NPS)	1916901-24
THERAPY IN ACTION (NPA)	1925801-24

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THERAPY MANTRA, INC. (NPA)	1928401-24
THERAPY WEST (NPA)	1925901-24
TOTAL EDUCATION SOLUTIONS (NPA)	1926001-24
VERDUGO HILLS AUTISM PROJECT (NPA)	1926101-24
VILLAGE GLEN SCH (VALLEY) (NPS)	1163201-24
VILLAGE GLEN WEST (NPS)	1930401-24
VISTA SCHOOL (NPS)	1169601-24
WAYFINDER FAMILY SERVICES(NPS)	1177301-24
WESTVIEW SCH ART/TEC (NPS)	1526401-24
WORKING WITH AUTISM (NPA)	1926301-24
YOUNG LEARNERS PRE-S & INTRVN CTR (NPS)	1918201-24

The Division of Special Education is seeking authorization to negotiate and execute Nonpublic School/Agency Master Contracts for the 2023-24 school year for the provision of statutorily required student Individualized Education Program (IEP) supports and services. The authority to increase or decrease individual amounts for these contracts will be limited to the aggregate amount of \$244,000,000.

The District is required to maintain a continuum of program options, including nonpublic, nonsectarian schools and nonpublic agencies, to meet the needs of qualified students with disabilities. (See Education Code, §§ 56360, 56361, 56365.) To provide these services, the District must enter into a master contract in accordance with the Education Code. (Education Code, § 56366.)

The Division of Special Education is requesting authority to negotiate and execute new contracts with vendors not listed above within the aggregate amount of \$244,000,000. The Division of Special Education will bring the aforesaid contracts to the Board for ratification at a later date. The Division of Special Education is further requesting authority to negotiate rates, as provided by California Education Code section 56366, subsection (c)(2)), and will return to the Board for ratification of the contracts after rates have been either negotiated or ordered by Los Angeles County Office of Education (LACOE) as delegated by the California Department of Education.

Contract Term: 07/01/23 through 6/30/24 to be renewed annually.

Aggregate Contract Value For One Hundred (100) Contracts: \$244,000,000

Requester:

Maribel Luna, Ed. D

Senior Director

Division of Special Education